REPORTABLE (13)

DAVID EDWARD GARDNER

v

THE STATE

CONSTITUTIONAL COURT OF ZIMBABWE
HARARE 12, AND 15 MAY AND 25 NOVEMBER 2025
MAKARAU JCC, GOWORAJCC & HLATSHWAYO JCC

R. T. Mutero for the applicant.

E. Makoto for the respondent.

Application for leave to appeal.

Makarau JCC-

[1] This is an application for leave to appeal against a decision of the Supreme Court which dismissed the applicant's appeal against a judgment of the High Court. The High Court had, in turn, dismissed the applicant's appeal against conviction and sentence by the Magistrates' Court on three counts of contravening the Sexual Offences Act [*Chapter 9.21*]. In the application for leave to appeal, the applicant alleges that the Supreme Court judgment infringed his fundamental rights to a fair trial and to the equal protection and benefit of the law.

[2] The application is opposed.

[3] As will emerge progressively, the conduct of this matter, before both the Court *a quo* and this Court, appears to have been marred by a few legal lapses, resulting in an intricate legal web whose disentanglement requires some delicate handling.

[4] Ultimately, the application for leave to appeal must be denied. The reasons follow below.

Background.

[5] In 2008, the applicant was convicted by the Magistrates' Court of three counts of contravening two separate sections of the Sexual Offences Act [*Chapter 9.21*]. That Court found that the applicant had committed immoral or indecent acts against three young persons. It sentenced the applicant to eight months' imprisonment for each conviction. Of the total 24 months, 12 were suspended on conditions.

[6] The applicant appealed to the High Court against both conviction and sentence. The appeal against conviction was unsuccessful. The High Court, however, suspended the prison term on condition that the applicant performed community service. The applicant appealed further to the Court *a quo*, continuing to challenge the correctness of his conviction and the propriety of the sentence.

[7] The first hearing of the appeal in the court *a quo* was in June 2023. At this hearing, the applicant alleged that his rights to a fair trial had been infringed during the trial of the matter in the Magistrates' Court. In this regard, he alleged that the prosecutor in the matter had conducted himself in an irregular manner and that this irregularity

vitiated the entire trial. Specifically, he alleged that the prosecutor had allowed the complainants to refresh their memories whilst in the same room.

[8] The applicant further alleged that the legal practitioner who was keeping a watching brief over the affairs of the school where the minors were students and the applicant was employed also misconducted himself, thereby further tainting the criminal trial.

[9] At this stage, it is appropriate to note that the raising of the allegations regarding the validity of the applicant's criminal trial were permitted by the court *a quo* as an amendment to the applicant's grounds of appeal before that court. This is evident from a reading of the judgment, where the court recorded:

> "The appellant later amended his grounds of appeal which state that:
>
> "1. The appellant did not receive a fair trial as required by s 69 of the Zimbabwe Constitution in that prior to the commencement of the trial, the state Prosecutor assembled state witnesses collectively in one office and discussed the case with them which conduct was irregular and prejudicial to appellant.
>
> 1.1 The said irregularity was fundamental especially if regard is taken of the following:
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> 1.1.1 The complainants engaged in some discussion concerning the appellant's conduct prior to him allegedly committing the alleged offences and even after the alleged commission of the offences.
>
> 1.1.2 The complainants and the rest of the State witnesses had the opportunity to widely discuss the matter among and between themselves.
>
> 1.1.3 The conduct of investigations by one Margret Elizabeth Grobellar appointed by the Board of Governors at St John's College to act as the investigator for the Board in anticipation of the contemplated disciplinary action provided an enormous opportunity for the complainants and the rest of the state witnesses to discuss the alleged matter and thus consciously or unconsciously influence each or one another."

[10] I will return to the amendment of the applicant's grounds of appeal in some detail later. Suffice it to note that two of the errors or legal lapses that I refer to in para [3] emanate from this acceptance by the Court *a quo* that an order granting the applicant leave to amend his grounds of appeal was duly granted by the court.

[11] It is also clear that the Court *a quo* proceeded to determine all the issues raised by the amended grounds of appeal, including whether the applicant received a fair trial. Therefore, in dismissing the appeal, the Court *a quo* first considered whether the applicant received a fair trial given the alleged conduct of the prosecutor. It concluded that the applicant had indeed received a fair trial. It then proceeded to find the applicant's conviction sound and dismissed the appeal.

[12] Unhappy with the dismissal of his appeal, the applicant filed an application with this Court, seeking leave to appeal against the findings that his fair trial rights had not been violated and that his conviction was sound.

[13] In view of the fact that the applicant's fair trial rights were raised for determination before the Court *a quo* during the hearing of a non-constitutional appeal, the provisions of s 175 (4) of the Constitution were triggered. Noting that the Court *a quo* had not observed the procedures laid out in the provision, this Court, on the turn, set aside the judgment and remitted the matter for a fresh hearing. As part of its order, it drew the lower court's attention to the provisions of s 175(4) of the Constitution.

[14] In hindsight, especially given the positions adopted afterwards, perhaps this Court should not have drawn the attention of the Court *a quo* to s 175(4) of the Constitution.

This gesture, well-intentioned though it may have been as offering a helpful clue, was unfortunately misunderstood by the applicant as a directive to the Court *a quo* to initiate a determination in terms of s 175(4) and by that court as unwelcome overreaching by this Court.

[15] Upon remittal, and clearly responding to the perceived overreaching by this Court, the Court *a quo* reverted to the un-amended grounds of appeal that the appellant had filed in the matter. It received a new application to amend the applicant's grounds, which it roundly rejected using its common law discretion. It then upheld the applicant's conviction and sentence and dismissed the appeal.

[16] It is in these circumstances that the applicant filed this application, once again seeking leave to appeal the Supreme Court's decision, denying him the opportunity to contest the fairness of his criminal trial.

The application for leave to appeal.

[17] If leave is granted, the applicant intends to appeal against the Supreme Court decision on the following three grounds:

> "(a) The Court *a quo* erred and misdirected itself when it refused the amended grounds of appeal despite the same having been presented and accepted under CCZ 13/24 and therefore violated applicant's right to a fair hearing and his right to equal protection and benefit of the law as enshrined in section 56 of the Constitution of Zimbabwe 2013.
>
> (b) The conduct of the court *a quo* in subsequently refusing to interrogate the conduct of the Prosecutor, having regard, in particular, to the requirements of s 175 (4) of the Constitution as directed by the Constitutional Court under CCZ 13/24 violated Applicant's right to a fair hearing and his right to equal protection of the law as enshrined in s 56 of the Constitution of Zimbabwe 2013.

(c) The Court *a quo* erred at law and misdirected itself when it held that the conduct of the prosecutor of coaching witnesses on the nature of the evidence he wanted and changing witness statements before the commencement of trial did not violate applicant's right to a fair trial and his right to equal protection of the law as enshrined in s 56 as read together with section 47 of the Constitution of Zimbabwe."

[18] The respondent opposed the application mainly on the basis that the applicant did not assert his fair trial rights before the trial court, nor before the High Court when the matter went on appeal. It was the respondent's view that the applicant tried to raise the issue before the Court *a quo* and was unsuccessful when his application to amend his grounds of appeal was denied. Therefore, the respondent contends, there was no constitutional issue appealable to this Court.

[19] The respondent further argued that the Supreme Court did not err or misdirect itself in dismissing the applicant's proposed amendment to his grounds of appeal, as no constitutional issues were raised from the beginning of the case. Therefore, the respondent asserts, the applicant does not have prospects of s not uccess on appeal. It thus prays for the dismissal of the application.

[20] In response to the argument that the Court *a quo* should have addressed the applicant's allegations of prosecutorial misconduct, the respondent contended that by remitting this matter for a *de novo* hearing, this court did not direct the lower court to invoke the provisions of s 175 (4) of the Constitution, even if it hinted at it.

The issues.

[21] The two broad issues that arise in this application are whether there was a constitutional issue before the Court *a quo*, and whether the applicant has some prospects of success if leave to appeal is granted.

[22] The issues, as framed above, are pre-determined by the applicable law in considering applications such as the one in *casu.* I note from the record that there was no dispute between the parties regarding the applicable law, which I will outline below simply for completeness.

[23] A growing body of law regarding the approach that this court must take when considering an application for leave to appeal against a decision of a lower court is emerging from several decisions of this Court.

> (See *Cold Chain (Pvt) Limited t/a Sea Harvest v Makoni* 2017 (1) ZLR 14 (CC); *Bonnyview Estate (Private) Limited v Zimbabwe Platinum Mine (Private) Limited & Another* 2019(1) ZLR 451 (CC); *Ismael v St John's College & Ors* CCZ 19-19; *TBIC Investments (Private) Limited v Mangenje & Ors* CCZ 15-20; *Chani v Mwayera N.O and Others* 2020(1) ZLR 17 (CC), *Chombo v National Prosecuting Authority & Others* CCZ 8-22; and *Vela v Auditor – General* CCZ 1-23.

[24] In *Bonnyview Estate (Private) Limited v Zimbabwe Platinum Mine (Private) Limited & Another* (*supra)*, it was held:

> "The requirements of an application of this nature were set out in *The Cold Chain (Pvt) Ltd t/a Sea Harvest* v *Makoni* CCZ 8/17 at pp 3-4 of the cyclostyled judgment as follows:
>
> > 'The requirements for leave to appeal to the Court from a subordinate court are these:
> >
> > a) Firstly, there must be a constitutional matter for determination by the Constitutional Court on appeal. The reason is that in terms of s 167(1) of the Constitution the Constitutional Court is the highest court in all constitutional matters and decides only constitutional matters and issues connected with decisions on constitutional matters. Rule 32(2) of the Constitutional Court Rules makes it clear that only a litigant who is aggrieved by the decision of a

> subordinate court <u>on a constitutional matter only</u> has a right to apply for leave to appeal to the Constitutional Court (the underlining is for emphasis). …..
> b) Secondly, the applicant must show the existence of prospects of success for leave to be granted."

[25] The *Cold Chain (Pvt) Ltd t/a Sea Harvest v Makoni (supra*) and *Bonnyview Estate (Private) Limited v Zimbabwe Platinum Mine (Private) Limited & Another (supra)* have since been followed in this jurisdiction without qualification and have established the test that I have summarised above. Thus, as stated above, leave to appeal is granted if the intended appeal is against a decision of a subordinate court on a constitutional matter and the appeal enjoys some prospects of success.

<u>Is there a constitutional issue for determination on appeal?</u>

[26] To establish whether there is a constitutional issue for determination on appeal, I cannot ignore the prior proceedings between the parties as detailed in the background facts above. Notably, the applicant did not seek to assert his right to a fair trial before the trial court. He did not seek to have the proceedings of the trial court reviewed and set aside by the High Court. Notwithstanding these omissions, the Court *a quo,* in the first appeal hearing, allowed the applicant to raise an alleged violation of his fair trial rights in the magistrates' court. This he did by way of amending his grounds of appeal.

[27] Although the record does not include the order granting the applicant permission to amend his appeal grounds, it is undisputed that the Court *a quo* in the first appeal hearing allowed this amendment. The relevant section of the court's judgment, which confirms this, has been cited in detail above.

[28] Further, it cannot be disputed that the order allowing the applicant to amend his pleadings was interlocutory in nature. Because it was interlocutory, the order was integrated and became embedded into the appeal proceedings. Therefore, it could not be reviewed and set aside without at the same time setting aside the entire proceedings of the Court *a quo*.

[29] It is further common cause that the order allowing the applicant to amend his grounds of appeal was neither successfully appealed against nor set aside by this Court.

[30] Accepting then, as we must, that the proceedings before the Court *a quo* in the first hearing were not set aside, *Mr. Mutero's* argument becomes wholly cogent and its force unescapable. He argued that the issue of whether the criminal trial was fair, which had been raised by the applicant before the Court *a quo* in the first appeal hearing, remained squarely before that court during the second hearing. Therefore, the Court *a quo* ought to have exercised its fresh discretion in the matter on the amended grounds of appeal, which now included an allegation that the criminal trial was not fair and violated the applicant's rights as enshrined in s 69 of the Constitution.

[31] It is again common cause that in dismissing the "fresh" application to amend the applicant's grounds of appeal, the Court *a quo* did not make any reference to the prior application that had been duly granted. Instead, it reasoned in part as follows:

> "Having set aside the judgment of this Court in SC 110/22, the Constitutional Court remitted the matter to this Court for a hearing *de novo*, that is, to consider the matter afresh. A hearing *de novo* entails a complete reconsideration of the case, affording the parties a full and unfettered opportunity to reargue their case, unburdened by the findings or conclusions reached in the original hearing. It is a fresh adjudication that must unfold according to the grounds of appeal filed by the appellant and submissions by the parties." (The underlying is mine.)

[32] In my view, the Court *a quo* correctly understands the concept of a *de novo* hearing. However, if the purpose of the discussion cited in part above was to explain why the court reviewed and reversed its earlier decision and reverted to the original grounds of appeal, then the discussion was misplaced. This is so because the remittal of the matter was for a new hearing based on the existing proceedings, which now incorporated, correctly or incorrectly, the amended grounds. By inviting the applicant to make a fresh application to amend his grounds of appeal, the Court *a quo* purportedly turned a blind eye to the extant order made during the first appeal hearing. This it could not validly do as this effectively amounted to self-review.

[33] The court's inability to self-review and set aside its earlier rulings is not just a competence issue but also one of legitimacy. It yields a nullity. Being an issue of the jurisdiction of the Supreme Court, it is an irregularity making the proceedings *a quo* susceptible to being set aside. It is also a matter affecting the jurisdiction of the Court *a quo* and is therefore a matter of substantive constitutional law triggering the jurisdiction of this Court.

[34] Similarly, the failure by the Court *a quo* to correctly deal with an alleged constitutional matter arising during the hearing of an appeal is also both a procedural irregularity and an issue of substantive constitutional law, again triggering the appellate jurisdiction of this Court.

[35] I therefore find that the proceedings before the Court *a quo,* as detailed above, raise a constitutional issue that triggers the appellate jurisdiction of this Court.

[36] I now turn to address the issue of whether the applicant has prospects of success on the intended appeal.

Prospects of success

[37] This is an issue that has exercised my mind, given the layers of complexity that I have referred to above.

[38] I start again with the proceedings before the Court *a quo* during the first appeal hearing, wherein the court allowed the applicant to amend his grounds of appeal. This amendment purportedly introduced a fresh allegation into the proceedings, namely that the applicant's fair trial rights had been violated by alleged prosecutorial misconduct. I have no doubt that leave to amend his grounds of appeal was granted to the applicant in error. The error was in two distinct respects. Firstly, the allegation was not a ground of appeal but a new allegation of procedural irregularities marring the trial of the matter. Secondly, the allegation, not being a ground of appeal, could not be competently dealt with using the court's common law jurisdiction. Put differently, once the court accepted, rightly or wrongly, that the applicant could raise the constitutional issue before it, it could no longer resort to its common law discretion to allow or deny an amendment to the grounds of appeal but had to deal with the alleged "constitutional issue" arising in accordance with the provisions of s 175 (4) of the Constitution.

[39] It is important, however, to observe that the error by the Court *a quo* during the first hearing of the appeal was binding on that court and could not be corrected by that

court even upon the remittal of the matter. The error could only be corrected by this Court through an order setting aside the entire proceedings of the court. I have dealt with the inability of the court to self-review in detail above. The purported self-review begot a nullity.

[40] The applicant challenges this nullity in the first ground of the intended appeal. He argues:

> "The court *a quo* erred and misdirected itself when it refused the amended grounds of appeal despite the same having been presented and accepted under CCZ 13/24, and therefore violated the applicant's right to a fair hearing and his right to equal protection and benefit of the law as enshrined in section 56 of the Constitution of Zimbabwe 2013."

[41] I pause briefly to observe that the language used in the ground of appeal is not elegant. The ground could have been drafted more clearly. Currently, it conflates a ground of appeal and a fresh allegation that the decision *a quo* violated his fundamental rights to a fair hearing and to the equal protection and benefit of the law. The position of this Court has always been to frown in disapproval of a conflation of causes of actions. (See *Law Society of Zimbabwe v Parliament of Zimbabwe and Others* CCZ10/23). Whilst the conflation of causes of actions ordinarily results in the matter being struck off the roll, given the litigation history of this matter and in the interests of achieving finality in the litigation, I am inclined to deal with the matter on the merits.

[42] As discussed in detail above, it is most likely that this Court, sitting as a full bench, will agree with the applicant's contention that the Court *a quo* lacked the authority to self-review and overturn the interlocutory order allowing the constitutional issue to be

raised. To this extent, the applicant has prospects of succeeding in having the decision *a quo* refusing the amendment to his grounds of appeal set aside as being irregular.

[43] For the avoidance of doubt, it is therefore my finding that the intended appeal enjoys prospects of success on the first ground. The applicant is likely to succeed in having the order dismissing his appeal reversed on account of the procedural irregularity committed by the Court *a quo*. I could therefore set aside the decision *a quo* on that basis and once again remit the matter. But that is not all. Doing so would be but to hand over an illusory victory to the applicant. This is so because whilst the court *a quo* erred in its handling of the issue, the applicant in turn erred in the manner in which he sought to place the constitutional matter before the Court *a quo* for determination in the first place. He could not do so by amending his grounds of appeal.

[44] It is apparent that central to the application is the applicant's desire to have the criminal trial set aside because of the alleged prosecutorial impropriety. Thus, he argues in his second ground of the intended appeal:

> "The conduct of the court *a quo* in subsequently refusing to interrogate the conduct of the Prosecutor, having regard, in particular, to the requirements of s 175 (4) of the Constitution as directed by the Constitutional Court under CCZ 13/24 violated Applicant's right to a fair hearing and his right to equal protection of the law as enshrined in section 56 of the Constitution of Zimbabwe 2013."

[45] More pointedly, in the third ground of the intended appeal, he attacks the correctness of the first decision *a quo* that the alleged conduct of the prosecutor did not violate the applicant's fundamental right to a fair trial.

[46] Again, I note in passing that, in the second and third grounds of appeal, the applicant incompetently conflates grounds of appeal with new allegations of violations of his fundamental rights by the decision *a quo*.

[47] I reiterate that the Court *a quo* erred in its approach to the issue that the applicant intended to raise before it. That error by the Court *a quo* did not however license the applicant to circumvent the procedure laid down in s 175 (4) of the Constitution, which he should have insisted upon by making the requisite application. Having failed to do so, the issue that he intends to raise cannot be determined by this Court on appeal.

[48] Both parties and the court *a quo* regarded the raising of an allegation that the prosecutor's conduct violated the applicant's fair trial rights as a ground of appeal. In the circumstances of this matter, it was not, as it did not challenge the correctness or otherwise of his conviction and/or the propriety of the sentence. It was a fresh allegation, collaterally challenging the legitimacy and validity of the entire trial that culminated in his conviction and sentence. The Court *a quo* and the parties were all focused on and believed that a successful application to amend the applicant's grounds of appeal was necessary to enable the raising of the allegation. They held the common but erroneous view that in the absence of such an amendment properly granted, the constitutional issue could not be raised.

[49] I must point out that the raising of a constitutional matter, being a point of law, can be made at any time during the pendency of proceedings before a lower court. It can be raised in any form. Whilst a litigant is at large, during the determination of a non-

constitutional issue, to raise an alleged constitutional issue before any court at any time, the cogency of such an issue can only be determined by that court following the procedure laid out in s 175 (4) of the Constitution. This procedure has been detailed and debated in various decisions of this Court. It is unnecessary that I burden this judgment with yet another discussion of the procedure.

[50] It is important, however, to emphasise that to insist on the procedure laid down in s 175(4) of the Constitution for the raising of constitutional matters during the determination of a non-constitutional dispute is not putting form over substance. The procedure is uniquely formulated to contain build-in safeguards against abuse of the process and at the same time ensure the integrity of the process of the determination of constitutional matters. The integrity of the constitutional litigation process is protected by imposing a duty on the lower court to only refer a constitutional question for answering by this Court where the request raising such a question is not frivolous or vexatious and is relevant and necessary for the determination of the non-constitutional dispute before the court. The procedure also protects the jurisdiction of this Court in that it shields this Court from determining issues other than those aimed at upholding the supremacy of the Constitution. By imposing a duty on the lower court to settle any disputes of fact, the procedure reinforces the distinction between the jurisdiction of this Court and that of lower courts. No disputes of fact can be determined by this Court as it enjoys only constitutional jurisdiction. (See *Sadziwana v Natpak (Pvt) Ltd & Ors* 2019 (3) ZLR 408 (CC).)

[51] In view of the fact that the applicant did not institute the proper procedures, there was no determination of the facts giving rise to the alleged prosecutorial misconduct. The facts cannot be settled by or before this Court.

[52] In any event, even assuming in the applicant's favour that there is no dispute that the prosecutor in the criminal trial misconducted himself as alleged, an assessment of such conduct against the established standard of prosecutorial conduct is not a constitutional issue that would engage the attention of this Court. It is the position in this jurisdiction that an assessment of the facts of any dispute against an accepted standard is not a constitutional matter. (See *Sadziwana* v *Natpak (Pvt) Ltd* & *Ors (supra).*)

[53] Therefore, the applicant has no prospects of success in having the alleged prosecutorial misconduct determined against the accepted standard by this Court. It is mainly on this basis that his application for leave to appeal falters and stands to be dismissed.

[54] Further, the applicant has no prospects of success on the remaining grounds of appeal that he intends to raise if leave is granted.

[55] As given above, the first ground of appeal reads:

> "(a) The court *a quo* erred and misdirected itself when it refused the amended grounds of appeal despite the same having been presented and accepted under CCZ 13/24 and therefore violated applicant's right to a fair hearing and his right to equal protection and benefit of the law as enshrined in s 56 of the Constitution of Zimbabwe 2013.

[56] I have above dealt with the first portion of the first ground of appeal. The other portion of the ground then alleges that the Court *a quo,* by refusing the amendment, violated the applicant's fair trial rights and the additional right to equal protection and benefit of the law. As discussed above, this in a fresh allegation of the violation of the said rights by the Court *a quo* in determining the appeal more appropriately raised in an application for direct access. It is not a ground of appeal.

[57] The second ground is also in fact not a ground of appeal. It attacks the Court *a quo* for an alleged refusal to interrogate the conduct of the prosecutor and that, according to the applicant, by so doing the Supreme Court violated his fair trial rights under s 69(1) and equal protection and benefit of the law under s 56 of the Constitution. This cannot by any stretch of the imagination be considered as a ground of appeal.

[58] The last ground attacks the court for having erred and misdirected itself when it held that the coaching of witnesses and the changing of witness statements by the prosecutor at the commencement and during the trial did not violate the applicant's right to a fair trial in terms of s 18(2) of the former Constitution and s 69(1) of the Constitution of Zimbabwe of 2013.

[59] This ground stems from a submission made before the Court *a quo* by counsel on the applicant's behalf. Mr *Ndlovu* submitted before the Supreme Court that the record of proceedings before the trial court revealed a constitutional irregularity impacting on the appellant's right to a fair trial. He contended that if the court found no merit in the grounds of appeal advanced, it ought to invoke its review powers in terms of s 25 of

the Supreme Court Act [*Chapter 7:13*] (the Supreme Court Act) and remit the matter to the trial court for a hearing *de novo.*

[60] In determining this submission by counsel, the Court *a quo* stated thus at para 59:

> "59. With regards the invitation by the appellant to invoke its review powers under s 25 of the Supreme Court Act, this is a power that the Court exercises *meru motu* and not on invitation by a party. In any event, the issue that the appellant raised as a basis for the Court to exercise its review powers is the very issue that he sought to raise through his fateful application to amend his grounds of appeal. As correctly submitted by the respondent, any engagement in the issue would amount to this Court reversing its own decision to dismiss the application. This is clearly untenable."

[61] An appeal to any court against the decision of a lower tribunal or subordinate court is on the record. The decision that is being impugned must be adjudicated on the issues being raised in the grounds of appeal. There must have been a determination of those issues that would enable the appellant to show a legal basis upon which the intent to impugn the decision may emanate from. Grounds of appeal that have no link with a decision by a court on the issues to be determined on appeal cannot constitute proper grounds cognisable at law. Thus, in the absence of a decision on the issues to be determined there cannot be a proper appeal for adjudication.

[62] A cursory analysis of the intended grounds of appeal to this Court leads me to conclude that at the very least the applicant wishes to launch an appeal against the substance of the judgment of the Court *a quo*. The Supreme Court, as the intended draft notice will show, did not determine a constitutional matter nor did it have one pending before it. The applicant through the amended grounds attempted to get the Supreme Court to determine constitutional issues. The Court *a quo*, even if it had

done so, does not determine constitutional matters in the first instance. In any event, it did not do so.

[63] Regarding costs, there is no justification for departing from the general position of this Court of not making orders as to costs in favour of any of the parties.

[64] In the result, I make the following order:

1. The application is dismissed.
2. Each party shall bear its own costs.

GOWORA JCC : I agree.

HLATSHWAYO JCC : I agree

Masamvu and DaSilva-Gustavo, applicant's legal practitioners.

National Prosecuting Authority, respondent's legal practitioners.